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1. Introduction

According to Art. 116(1) EPC, oral proceedings shall take place either at the instance of the EPO if it considers this to be expedient or at the request of any party to the proceedings. In other words, oral proceedings are not held automatically in each case. The purpose of oral proceedings is to safeguard a party's right to be heard as well as to settle as far as possible all outstanding questions relevant to the decision and to speed up the procedure.

Besides Art. 116 EPC, there are also other provisions relevant for the preparation and conduct of oral proceedings: R. 115 EPC – summons to oral proceedings (see in this chapter III.C.6.2.), R. 116 EPC – preparation of oral proceedings (see in this chapter III.C.6.3.), R. 124 EPC – minutes of oral proceedings (see in this chapter III.C.7.10.), as well as various notices concerning the practice for fixing the date of oral proceedings (see in this chapter III.C.6.1.1.). For the boards of appeal, see also Art. 15 and 15a RPBA 2020.

2. Right to oral proceedings

2.1. Right to oral proceedings in examination, opposition and appeal proceedings

The right to an oral hearing is an extremely important procedural right which the EPO should take all reasonable steps to safeguard (T 668/89; T 808/94; T 556/95, OJ 1997, 205; T 996/09; T 740/15). If a request for oral proceedings (see in this chapter III.C.4.) has been made, such proceedings have to be appointed. This provision is mandatory and leaves no room for discretion (T 283/88, T 795/91, T 556/95, T 1048/00, T 740/15), i.e. parties have an **absolute right** to oral proceedings (T 552/06, T 189/06, T 263/07, T 1426/07, T 653/08, T 1251/08, T 1829/10). Considerations such as the speedy conduct of the proceedings, equity or procedural economy cannot take precedence over this right (T 598/88, T 731/93, T 777/06). The right to be heard in oral proceedings subsists so long as proceedings are pending before the EPO (T 556/95, T 114/09).

Where several parties are involved, e.g. in opposition proceedings, the EPC provides only for oral proceedings to which all the parties are invited, so as to respect the principles of judicial impartiality and the equal rights of parties (T 693/95).

In T 247/20 the board stated that oral proceedings form an important part of proceedings before the boards of appeal. Their prominence was underlined by the absolute right of a party to oral proceedings under Art. 116 EPC. They served to allow a discussion of the matters pertinent to the board's decision. Oral proceedings would serve no purpose if the parties were limited to presenting a mere repetition of the arguments put forward in writing. Instead, parties must be allowed to refine their arguments, even to build on them provided they stayed within the framework of the arguments, and the evidence, submitted in a timely fashion in the written proceedings.

In T 1790/17 the board underlined that the purpose of oral proceedings was, for the appellant, to better explain his case and, for the board, to understand and clarify points which, perhaps, up to that point were not sufficiently clear. This was particularly relevant in ex parte cases, where besides the applicant (appellant) no other party was involved. If amendments resulting from such discussions were not possible, oral proceedings would be pointless.

In G 2/19 (OJ 2020, A87) the Enlarged Board considered that a third party within the meaning of Art. 115 EPC who has filed an appeal against a decision to grant a European patent has no right to have its request for an order that examination proceedings in respect of the European patent be reopened for the purpose of removing allegedly unclear claims (Art. 84 EPC) heard at oral proceedings before an EPO board of appeal. Given the variety in the scope of that provision's application, its nature could not be considered so, as it were, absolute. The legislator had clearly intended it to serve as a basic rule governing the typical cases facing EPO departments in their everyday practice but it could not be ruled out that exceptions to this basic rule might be made where its application would make no sense in the specific circumstances of an individual case. Instead, Art. 116(1), first sentence, EPC was to be interpreted narrowly, such that a purely formal position as de

facto party to appeal proceedings was not enough to confer a right to require that oral proceedings be held if the person requesting them had no standing to appeal, because they had not been a party to the foregoing proceedings in the legal sense, or if the grievance they invoked was not appealable (see referral in T 831/17 of 25 February 2019).

2.1.1 Right to oral proceedings even after a Rule 71(3) EPC communication

The board in T 556/95 (OJ 1997, 205) held that the discretion of an examining division to allow amendments up to the decision to grant the patent did not mean that that department had discretion to refuse a request for oral proceedings dealing with such amendments. The examining division had to have regard to Art. 116(1) EPC 1973 when exercising its discretion under R. 86(3) EPC 1973 in case of amendments requested after the issue of a communication under R. 51(6) EPC 1973 (equivalent in substance to R. 71(3) EPC). The Enlarged Board of Appeal – which in G 7/93 (OJ 1994, 775) had given some guidance as to how an examining division should exercise such discretion – could not limit the application of Art. 116(1) EPC 1973 by means of such guidance.

2.1.2 Right to oral proceedings even if no new arguments are presented

In T 383/87 the board pointed out that Art. 116(1) EPC 1973 guaranteed the right of any party to request oral proceedings, i.e. to argue its case orally before the relevant department of the EPO. A party might feel that it could present its case better orally than in writing, even if it had no new arguments. It was then its genuine right to request oral proceedings without being inhibited by the fear of having to pay additional costs, unless the request for oral proceedings was a clear abuse of the law. See also T 125/89, T 318/91, T 1051/92, T 6/98. However, the lack of introduction of new points in oral proceedings was an aspect considered in T 167/84 (OJ 1987, 369) for the board making an award on costs. On the apportionment of costs, see chapter III.R.2.2. "Acts or omissions prejudicing the timely and efficient conduct of oral proceedings".

2.1.3 No right to telephone conversation

According to the established case law, the EPC foresees the absolute right to oral proceedings under Art. 116(1) EPC, but not the right to a telephone interview or an informal telephone consultation. This applies to the procedure before the examining division (see chapter IV.B.2.7. "Informal communications"), as well as to the proceedings before the boards of appeal (see decisions cited below).

A board is not required to contact the appellant by holding a telephone interview, for instance with the rapporteur, either after receipt of the response to the summons, or on the day of the oral proceedings (T 552/06, T 189/06, T 1984/07, T 578/14).

In T 263/07 the appellant had requested that the rapporteur of the board telephone the appellant's representative to discuss the case so that the oral proceedings could possibly be cancelled. The board held that it was important that the same case was presented to all the board's members. For one of the board's members to be privy to evidence or arguments not available to the other members would be a breach of the principle of

collective decision-making and in conflict with Art. 21 EPC 1973. Since the requested telephone interview could have led the rapporteur to take a position on an issue where a collective decision would have been required, or to commit the board without preliminary discussion, the request was refused. See also T 1109/02, T 653/08, T 911/10. This was confirmed in T 1251/08, in which the board added it wished to avoid giving the impression that it was never appropriate for parties in ex parte proceedings to telephone the rapporteur.

In T 1984/07, the board did not rule out that there may be circumstances in which a telephone call may be appropriate: for example, if only minor objections remain which could be easily attended to by straightforward amendments. However, in the case in hand, the objections were of such nature that any further amendments were likely to entail more than just a simple modification to the wording of the claims or a straightforward adaptation of the description. Examples of cases in which the rapporteur contacted the applicant by phone are: T 329/90, T 182/90 (OJ 1994, 641), T 594/94, T 931/99, T 845/10, T 680/13.

2.2. Right to oral proceedings before the Receiving Section

Under Art. 116(2) EPC, oral proceedings must take place before the Receiving Section at the request of the applicant only where the Receiving Section considers this to be expedient or where it envisages refusing the European patent application. The Legal Board, exercising the powers within the competence of the Receiving Section, can refuse a request for oral proceedings made by an applicant in the course of an appeal against a decision of the Receiving Section for the same reasons (J 20/87, OJ 1989, 67).

Although according to Art. 116(2) EPC the Receiving Section is entitled not to grant a request for oral proceedings, the applicant has the right to a decision on that request (J 16/02). Not deciding on a request put before the Receiving Section constitutes a substantial violation of the applicant's right to be heard (J 9/18). The discretion foreseen in Art. 116(2) EPC in dealing with the request for oral proceedings is not without limits and has to be exercised in light of recognised procedural principles such as the right to be heard set out in Art. 113(1) EPC (J 17/03).

The decision confirming a loss of a right (R. 69(2) EPC 1973, R. 112(2) EPC) is not a case in which the Receiving Section "envisages refusing the European patent application" within the meaning of Art. 116(2) EPC 1973 (J xx/xx=J 900/85, OJ 1985, 159; J 17/03).

3. Oral proceedings at the instance of the EPO

Oral proceedings may take place even if they were not requested, as according to Art. 116(1) EPC, oral proceedings shall take place at the instance of the EPO if it considers this to be expedient.

3.1. Expediency of oral proceedings

In T 660/12 the board held that the wording of both Art. 116(1) EPC and the Guidelines made it clear that the only criterion for oral proceedings to take place at the instance of the